

Saktu Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 March 2017 · WRIT - C No. 9142 of 2017 · **Writ against electricity bill dismissed; relegated to clause 6.5.**

HEADNOTE

A consumer aggrieved by an electricity bill raised by the Power Corporation has a statutory remedy under clause 6.5 of the Electricity Supply Code, 2005. The High Court declined to entertain a writ petition assailing such a bill and dismissed it on that alternative remedy.

FACTUAL SUMMARY

Saktu Lal petitioned the Allahabad High Court against the State of Uttar Pradesh and others, including the Power Corporation, being aggrieved by an electricity bill the Corporation had raised against him. Counsel for the petitioner advanced several submissions attacking that bill. Counsel for the Power Corporation stated that the petitioner had a remedy under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative statutory remedy for bill dispute

HOLDING

Where a consumer is aggrieved by an electricity bill raised by the Power Corporation, clause 6.5 of the Electricity Supply Code, 2005 furnishes a statutory remedy, and the High Court will decline to entertain a writ petition assailing the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer aggrieved by an electricity bill raised by the Power Corporation has a statutory remedy under clause 6.5 of the Electricity Supply Code, 2005. The High Court declined to entertain a writ petition assailing such a bill and dismissed it on that alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court did not examine the petitioner's submissions on the merits of the bill, dismissing the writ on the availability of the clause 6.5 remedy. ¶ 1